

24STCV22751 24STCV22751

County: los-angeles

Division: Civil Law and Motion

Department: 730

Hearing date: 2026-08-10

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Case Number: 24STCV22751 Hearing Date: August 10, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

SILVA

AVOYAN,

Plaintiff,

vs.

PRECISION

GLOBAL CONSULTING, INC., et al.,

Defendants.

Case No.:

24STCV22751

Hearing

Date:

August 10, 2026

ORDER

GRANTING MOTION FOR SUMMARY JUDGMENT

I. BACKGROUND

Plaintiff Silva Avoyan

("Avoyan") was allegedly sexually harassed by supervising employee Defendant Rory Musil ("Musil") throughout her employment with Defendants Precision Global Consulting, Inc. ("Precision"), Phaidon International (US), Inc. ("Phaidon"), Azzur Group ("Azzur"), and Takeda Pharmaceuticals, U.S.A., Inc. ("Takeda"). Avoyan was allegedly terminated for rebuffing Musil's advances. Avoyan sued Defendants for four causes of action, including wrongful termination.

On May 6, 2026, Phaidon filed the instant motion for summary judgment, or, in the alternative, summary adjudication. No party filed an opposition, but Avoyan filed a "Motion to Continue Motion for Summary Judgment" set for hearing on October 12, 2026.

III. LEGAL STANDARD

A

party may move for summary judgment "if it is contended that the action has no merit or that there is no defense to the action or proceeding." (Code Civ. Proc.[1] § 437c, subd. (a).) "[I]f all the evidence submitted, and all inferences reasonably deducible from the evidence and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law," the moving party will be entitled to summary judgment. (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

The

moving party bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact, and if he does so, the burden shifts to the opposing party to make a prima facie showing of the existence of a triable issue of material fact. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850, citing to § 437c, subd. (p)(2).) To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (Sangster v. Paetkau

(1998) 68 Cal.App.4th 151, 166.)

Neither

a moving nor responding party may rely on the mere allegations or denials of its pleadings. A moving party must submit specific admissible evidence showing that the responding party cannot establish at least one element of his, her or its cause of action or defense. The responding party, to defeat the motion, must submit specific admissible evidence showing that a triable issue of material fact does exist as to that element of the cause of action or defense.

(Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.)

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“Golden Rule” on a motion for summary judgment or summary adjudication is that “if [a fact] is not set forth in the separate statement, it does not exist.” (Zimmerman, Rosenfeld, Gersh & Leeds LLP v. Larson (2005) 131 Cal.App.4th 1466, 1477, citing United Community Church v. Garcin (1991) 231 Cal.App.3d 327, 337.).

III. DISCUSSION

Phaidon requests the Court

enter summary judgment as Phaidon took no adverse employment action against Avoyan, nor did Phaidon employ Musil.

A. Statement of Facts

In February 2023, Phaidon,

a temporary staffing company, entered into a staffing service agreement with Azzur in which Phaidon agreed to supply Azzur with flexible staffing services.

(UMF 1, 3.) In October 2023, Phaidon contacted Avoyan to ask if she was interested in a temporary assignment for Azzur at Takeda’s site. (UMF 7.)

Avoyan accepted the offer and began working on the assignment. (UMF 9.)

Avoyan was later terminated

from this employment on December 14, 2023. (UMF 26.) At no point was Phaidon involved or aware of Avoyan’s pending termination. (UMF 30.) Azzur and Avoyan only notified Phaidon after Avoyan’s employment ended. (UMF 31.) Phaidon did not otherwise demote Avoyan, change her schedule or hours, change her rate of pay, discipline her, give her a warning, or do anything that may have otherwise

impacted her job performance. (UMF 38.) Phaidon has since submitted Avoyan as a potential candidate for other positions. (UMF 44.) Phaidon has not marked Avoyan as inapplicable for placement. (UMF 46.)

At all times mentioned in the complaint, Musil was not employed or represented by Phaidon. (UMF 12.) Phaidon did not supervise, control, or pay Musil. (UMF 13-20.) Avoyan never informed anyone at Phaidon regarding Musil's conduct prior to the end of her assignment. (UMF 32-34.)

A. Adverse Employment Action

Phaidon first requests the Court grant summary judgment as to the cause of action for discrimination under the Fair Employment and Housing Act ("FEHA") as the evidence shows Phaidon did not take any adverse employment actions against Avoyan. "The plaintiff must generally show that: he or she was a member of a protected class; was qualified for the position he sought; suffered an adverse employment action, and there were circumstances suggesting that the employer acted with a discriminatory motive. On a defense motion for summary judgment against a disparate treatment claim, the defendant must show either that one of these elements cannot be established or that there were one or more legitimate, nondiscriminatory reasons underlying the adverse employment action." (Jones v. Department of Corrections (2007) 152 Cal.App.4th 1367, 1379, citations omitted.)

The evidence demonstrates Phaidon has not taken any adverse employment action against Avoyan. Avoyan's employment was terminated by Azzur and/or Takeda; Phaidon was uninvolved in the decision. Since then, Phaidon has not taken any adverse employment actions against Avoyan. Phaidon has met its obligation it did not commit an adverse employment action. The burden shifts to Avoyan, who has not opposed this motion. Therefore, this cause of action is subject to summary judgment.

Similarly, the cause of action for retaliation is also subject to summary judgment as Avoyan has not presented any evidence to establish Phaidon took any retaliatory action against Avoyan. In order to prevail on a claim for retaliation under FEHA, a plaintiff must show she engaged in a protected activity, her employer subjected her to an adverse employment action, and there was a causal link between the protected

activity and the employer's action. (Scotch v. Art Inst. of California (2009) 173 Cal. App. 4th 986, 1020.) Again, the evidence establishes Phaidon did not take any adverse employment action against Avoyan. Therefore, the Court grants summary judgment as to this cause of action.

C. Harassment

Phaidon requests the Court grant summary judgment as to the cause of action for harassment under FEHA as Phaidon did not employ or otherwise represent Musil. "To establish a prima facie case of a hostile work environment, [the plaintiff] must show that (1) [plaintiff] is a member of a protected class; (2) [plaintiff] was subjected to unwelcome harassment; (3) the harassment was based on [plaintiff's] protected status; (4) the harassment unreasonably interfered with [plaintiff's] work performance by creating an intimidating, hostile, or offensive work environment; and (5) defendants are liable for the harassment." (Ortiz v. Dameron Hospital Assn. (2019) 37 Cal.App.5th 568, 581.)

"An employer is strictly liable for harassment committed by its agents or supervisors but is liable for harassment committed by its other employees only if it fails to take immediate and appropriate corrective action when reasonably made aware of the situation." (Jones v. Department of Corrections & Rehabilitation (2007) 152 Cal.App.4th 1367, 1377.) An employer cannot be liable for harassment under FEHA for conduct committed by non-employees. (Kelly v. General Tel. Co. (1982) 136 Cal.App.3d 278, 284.)

Pursuant to the Labor Code, an employer is a person or entity which employs any person or persons to perform services for a wage or salary. (LC § 1132.2.) A person employs another through three alternative means: 1) by exerting control over the wages, hours or working conditions of another person; 2) to suffer or permit to work; or 3) to engage another person, creating a common law employment relationship (Martinez v. Combs (2010) 49 Cal.4th 35, 64.) To establish a party 'suffered' or 'permitted' work, said party must have the power to either cause or prevent another from working under some sort of employment structure. (Futrell v. Payday California, Inc. (2010) 190 Cal.App.4th 1419, 1429.) A common law employment relationship generally evaluates whether the alleged employer had 'control of details,' such as tools, place of business, length of time, method of payment, and supervision. (Ibid.)

The evidence establishes Musil was not Phaidon's employee in any capacity. Phaidon did not control Musil's employment or wages, allow Musil to perform tasks for Phaidon, or control details of Musil's work. Therefore, actions by Musil cannot be attributed to Phaidon. Phaidon has met its burden of establishing Phaidon is not liable for this cause of action.

D. Wrongful
Termination

As Avoyan's claims against Phaidon for harassment, retaliation, and discrimination under FEHA are subject to summary judgment, so is the claim for wrongful termination in violation of public policy. "[When] [the plaintiff's] FEHA claim fails, his claim for wrongful termination in violation of public policy fails." (Hanson v. Lucky Stores, Inc. (1999) 74 Cal. App. 4th 215, 229.) No viable cause of action exists in Avoyan's complaint against Phaidon.

IV. CONCLUSION

Defendant Phaidon Pharmaceuticals, U.S.A.,
Inc.'s motion for summary judgment is GRANTED.

Phaidon is to give notice.

DATED:
August 10, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

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- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
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I. BACKGROUND

Plaintiff Silva Avoyan

("Avoyan") was allegedly sexually harassed by supervising employee Defendant Rory Musil ("Musil") throughout her employment with Defendants Precision Global Consulting, Inc. ("Precision"), Phaidon International (US), Inc. ("Phaidon"), Azzur Group ("Azzur"), and Takeda Pharmaceuticals, U.S.A., Inc. ("Takeda"). Avoyan was allegedly terminated for rebuffing Musil's advances. Avoyan sued Defendants for four causes of action, including wrongful termination.

On May 14, 2026, Precision filed the instant motion for summary judgment, or, in the alternative, summary adjudication. No party filed an opposition, but Avoyan filed a "Motion to Continue Motion for Summary Judgment" set for hearing on October 12, 2026.

III. LEGAL STANDARD

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party may move for summary judgment "if it is contended that the action has no merit or that there is no defense to the action or proceeding." (Code Civ. Proc.[1] § 437c, subd. (a).) "[I]f all the evidence submitted, and all inferences reasonably deducible from the evidence and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law," the moving party will be entitled to summary judgment. (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

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moving party bears an initial burden of production to make a prima facie

showing of the nonexistence of any triable issue of material fact, and if he does so, the burden shifts to the opposing party to make a prima facie showing of the existence of a triable issue of material fact. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850, citing to § 437c, subd. (p)(2).)

To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence.

(Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.)

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a moving nor responding party may rely on the mere allegations or denials of its pleadings. A moving party must submit specific admissible evidence showing that the responding party cannot establish at least one element of his, her or its cause of action or defense. The responding party, to defeat the motion, must submit specific admissible evidence showing that a triable issue of material fact does exist as to that element of the cause of action or defense.

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III. DISCUSSION

Precision requests the

Court enter summary judgment as Precision did not employ Avoyan, nor did Precision take any adverse employment action against Avoyan.

A. Statement of Facts

In 2023, Precision and

Phaidon entered into a contract for Precision to provide various administrative and payroll-related services, including the work of Avoyan. (UMF 8.)

In October 2023, Avoyan

began working at Takeda on a temporary assignment through Phaidon and Azzur. (UMF 1-2.) On or about October 20, 2023, Precision entered into an engagement

agreement with Avoyan for Precision to process payroll, provide benefits, and maintain certain employment records. (UMF 9.)

Precision did not supervise or control Avoyan's work performance. (UMF 10-11.) Precision did not provide any equipment to Avoyan or train Avoyan. (UME 12-15.) Precision did not have the authority to hire, transfer, promote, discipline, or discharge Avoyan in regard to the subject assignment. (UMF 16.) Precision is a legally separate entity from Phaidon, Azzur, and Takeda and has no shared ownership interest or management with any of those entities. (UMF 20-22.)

Avoyan was later terminated from her employment with Takeda on December 14, 2023. (UMF 23.) Precision was not involved in Avoyan's termination. (UMF 17.) Avoyan only notified Precision of the alleged harassment after her termination. (UMF 25.)

B. Employment

Precision requests the Court grant summary judgment as to all causes of action as Precision was not Avoyan's employer for purposes of Avoyan's Fair Employment and Housing Act ("FEHA") claims. All three of Avoyan's FEHA claims require that the named defendant be an employer of Avoyan.

Pursuant to the Labor Code, an employer is a person or entity which employs any person or persons to perform services for a wage or salary. (LC § 1132.2.) A person employs another through three alternative means: 1) by exerting control over the wages, hours or working conditions of another person; 2) to suffer or permit to work; or 3) to engage another person, creating a common law employment relationship (Martinez v. Combs (2010) 49 Cal.4th 35, 64.) To establish a party 'suffered' or 'permitted' work, said party must have the power to either cause or prevent another from working under some sort of employment structure. (Futrell v. Payday California, Inc. (2010) 190 Cal.App.4th 1419, 1429.) A common law employment relationship generally evaluates whether the alleged employer had 'control of details,' such as tools, place of business, length of time, method of payment, and supervision. (Ibid.)

The evidence establishes, for purposes of FEHA and this action, Precision was not Avoyan's employer.

Precision did not control Avoyan's wage, hours, or working conditions; Precision merely effectuated payroll and benefits. Precision did not provide equipment or instructions, nor did Precision control the location Avoyan worked. Precision could not hire, fire, promote, demote, discipline, or transfer Avoyan. Precision had no control of the details of Avoyan's employment.

As Precision was not Avoyan's employer for the FEHA claims, Precision cannot be liable for any of these causes of action. The burden shifts to Avoyan, who has not opposed this motion. Therefore, the Court grants summary judgment as to these causes of action.

C. Wrongful Termination

As Avoyan's claims against Precision for harassment, retaliation, and discrimination under FEHA are subject to summary judgment, so is the claim for wrongful termination in violation of public policy. "[When] [the plaintiff's] FEHA claim fails, his claim for wrongful termination in violation of public policy fails." (Hanson v. Lucky Stores, Inc. (1999) 74 Cal. App. 4th 215, 229.) No viable cause of action in Avoyan's complaint exists against Precision.

IV. CONCLUSION

Defendant Precision Global Consulting, Inc.'s motion for summary judgment is GRANTED.

Precision is to give notice.

DATED:
August 10, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

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I. BACKGROUND

Plaintiff Silva Avoyan

("Avoyan") was allegedly sexually harassed by supervising employee Defendant Rory Musil ("Musil") throughout her employment with Defendants Precision Global Consulting, Inc. ("Precision"), Phaidon International (US), Inc. ("Phaidon"), Azzur Group ("Azzur"), and Takeda Pharmaceuticals, U.S.A., Inc. ("Takeda"). Avoyan was allegedly terminated for rebuffing Musil's advances. Avoyan sued Defendants for four causes of action, including wrongful termination.

On May 1, 2026, Takeda filed the instant motion for summary judgment, or, in the alternative, summary adjudication. No party filed an opposition, but Avoyan filed a "Motion to Continue Motion for Summary Judgment" set for hearing on October 12, 2026. Takeda filed a reply.

III. LEGAL STANDARD

A

party may move for summary judgment "if it is contended that the action has no merit or that there is no defense to the action or proceeding." (Code Civ. Proc.[1] § 437c, subd. (a).) "[I]f all the evidence submitted, and all inferences reasonably deducible from the evidence and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law," the moving party will be entitled to summary judgment. (Adler v. Manor Healthcare Corp.

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III. DISCUSSION

Takeda requests the Court

enter summary judgment as Avoyan did not make any complaints about Musil’s harassment until after Avoyan’s employment was terminated for non-discriminatory reasons.

A. Statement of Facts

In October 2023, Takeda

contracted with Azzur for the hiring of a lab assistant to perform work on a

temporary assignment ("IGAAY"). (UMF 1.) Azzur provided Avoyan for the assignment, which ran from October 2023 to April 2024. (UMF 2-4.)

Avoyan had noted performance issues within days of starting her assignment. Avoyan struggled with basic computer interactions, including inputting a password to log in to the computer system. (UMF 5, 8-10.) She failed qualification tests for laboratory gowning and use of a nephelometer, a primary instrument on the IGAAY project. (UMF 11-12.) Avoyan did not improve despite repeated training by other employees, diverting time and resources away from IGAAY. (UMF 7, 13, 17.) Lulu Munoz, an IGAAY scientist, reported these concerns to Alexander Zaydenberg ("Zaydenberg"), who instructed Munoz to provide Avoyan additional opportunities to improve. (UMF 18-20.)

Avoyan's performance did not improve through December 2023. (UMF 21.) Munoz made additional complaints to Zaydenberg regarding Avoyan's lack of focus, self-sufficiency, accountability, time-management, and professional attitude. (UMF 24-25.) Zaydenberg reported these concerns to his supervisor Patrick Gavit ("Gavit") and recommended Avoyan for termination. (UMF 28-29.) Gavit made the decision to terminate Avoyan, based on this recommendation, on December 14, 2023. (UMF 31.) Gavit asked Musil, Avoyan's point of contact with the plant and an Azzur supervisor, to deliver the news of Avoyan's termination to her. (UMF 33.) Musil informed Avoyan later that day. (UMF 32.)

Only after Takeda fired Avoyan did Avoyan report any alleged inappropriate conduct from Musil. (UMF 37.) Avoyan went to HR and complained to Head of HR Joy Stephenson ("Stephenson") of Takeda's termination, Musil's alleged inebriation during an Azzur holiday event, Musil's visit to Avoyan's home outside of work hours, and Musil's attempts to speak to Avoyan at the Takeda plant. (UMF 38.) Avoyan admitted Stephenson listened to Avoyan's complaints. (UMF 39.)

Takeda investigated Avoyan's complaints by speaking with various Takeda employees, who confirmed they recommended Avoyan for termination due to her poor performance. (UMF 41.) Azzur conducted its own investigation and found Avoyan suffered from performance issues and failed to improve. (UMF 45.) Azzur also confirmed Avoyan did not complain about Musil's conduct until after Avoyan's termination. (UMF 45.) No Takeda or Azzur personnel reported they never witnessed or heard Avoyan was

being subjected to offensive or inappropriate conduct from anyone, including Musil. (UMF 47-52.) Takeda therefore held up its decision to terminate Avoyan's employment for performance issues. (UMF 53.)

B. Discriminatory

Motive

Takeda first requests the

Court grant summary judgment as to the cause of action for discrimination under the Fair Employment and Housing Act ("FEHA") as the evidence shows there were legitimate, nondiscriminatory reasons underlying Takeda's termination. "The plaintiff must generally show that: he or she was a member of a protected class; was qualified for the position he sought; suffered an adverse employment action, and there were circumstances suggesting that the employer acted with a discriminatory motive. On a defense motion for summary judgment against a disparate treatment claim, the defendant must show either that one of these elements cannot be established or that there were one or more legitimate, nondiscriminatory reasons underlying the adverse employment action." (Jones v. Department of Corrections (2007) 152 Cal.App.4th 1367, 1379, citations omitted.)

The evidence shows Avoyan

routinely failed to perform to the standard requested and required by Takeda. Avoyan was unable to properly utilize Takeda's computer systems or necessary laboratory instruments, despite repeated trainings and instructions. Avoyan's supervisor complained she had a poor attitude, took no accountability for mistakes, and failed to improve over the course of two months (out of a total six-month contract.)

Takeda has met its

obligation to demonstrate there were legitimate, nondiscriminatory reasons underlying the adverse employment action. The burden shifts to Avoyan, who has not opposed this motion. Therefore, this cause of action is subject to summary judgment.

Similarly, the cause of

action for retaliation is also subject to summary judgment as Avoyan has not presented any evidence to establish termination occurred for retaliatory reasons. In order to prevail on a claim for retaliation under FEHA, a plaintiff must show she engaged in a protected activity, her employer subjected her to an adverse employment action, and there was a causal link between the protected

activity and the employer's action. (Scotch v. Art Inst. of California (2009) 173 Cal. App. 4th 986, 1020.) Once an employee establishes a prima facie case, the employer is required to offer a legitimate, nonretaliatory reason for the adverse employment action. If the employer produces a legitimate reason for the adverse employment action, the presumption of retaliation “ ‘drops out of the picture,’ ” and the burden shifts back to the employee to prove intentional retaliation.” (Yanowitz v. L'Oreal USA, Inc. (2005) 36 Cal.4th 1028, 1042.) Even assuming Avoyan established a prima facie case for retaliation, Takeda has presented a legitimate reason for the adverse employment action.

Additionally, the Court

notes, Avoyan has no evidence to demonstrate the termination could have a potentially retaliatory motive. “The retaliatory motive is ‘proved by showing that plaintiff engaged in protected activities, that his employer was aware of the protected activities, and that the adverse action followed within a relatively short time thereafter.’ ” (Fisher v. San Pedro Peninsula Hospital (1989) 214 Cal.App.3d 590, 615.) Avoyan's protected activities of reporting sexual harassment did not occur until after Avoyan was terminated—there is no evidence to demonstrate Takeda was aware of Avoyan's intent to report or harassment prior to termination.

Therefore, the Court grants summary judgment as to these causes of action.

C. Harassment

Takeda requests the Court grant summary judgment as to the cause of action for harassment under FEHA as Takeda was unaware of Musil's conduct towards Takeda. “To establish a prima facie case of a hostile work environment, [the plaintiff] must show that (1) [plaintiff] is a member of a protected class; (2) [plaintiff] was subjected to unwelcome harassment; (3) the harassment was based on [plaintiff's] protected status; (4) the harassment unreasonably interfered with [plaintiff's] work performance by creating an intimidating, hostile, or offensive work environment; and (5) defendants are liable for the harassment.” (Ortiz v. Dameron Hospital Assn. (2019) 37 Cal.App.5th 568, 581.)

“An employer is strictly liable for harassment committed by its agents or supervisors but is liable for

harassment committed by its other employees only if it fails to take immediate and appropriate corrective action when reasonably made aware of the situation.” (Jones v. Department of Corrections & Rehabilitation (2007) 152 Cal.App.4th 1367, 1377.) Here, it is undisputed Musil was not a supervisory employee of Takeda, and therefore Takeda needed to be put on notice of the activity to take appropriate action (if Musil is considered Takeda’s employee in any capacity).

The evidence establishes Takeda was not put on notice as to Musil’s behavior at any point during Avoyan’s employment. After Avoyan made the report, Takeda conducted an investigation. The evidence establishes Takeda cannot be liable for harassment under FEHA.

D. Wrongful Termination

As Avoyan’s claims against Takeda for harassment, retaliation, and discrimination under FEHA are subject to summary judgment, so is the claim for wrongful termination in violation of public policy. “[When] [the plaintiff’s] FEHA claim fails, his claim for wrongful termination in violation of public policy fails.” (Hanson v. Lucky Stores, Inc. (1999) 74 Cal. App. 4th 215, 229.)

IV. CONCLUSION

Defendant Takeda Pharmaceuticals, U.S.A., Inc.’s motion for summary judgment is GRANTED.

Takeda is to give notice.

DATED:
August 10, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

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